

Objectives of issuing the new Personal Status Law



The new Personal Status Law in the Kingdom of Saudi Arabia represents a significant development in the regulation of family relations. It aims to govern matters related to marriage, divorce, custody, and alimony, ensuring justice and protecting the rights of all parties, especially women and children. This system reflects a legislative evolution aligned with social changes, grounded primarily in Islamic Shari'ah. The law aims to strengthen family and societal stability through organizing procedures and regulations.

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rights, and reducing family disputes, making it one of the Kingdom's most prominent modern legal systems. In this article, we will address the main features, objectives, key amendments, and the women's rights reinforced by the new law.

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What is the New Personal Status Law

The **Personal Status Law** (<https://lawfirm.com.sa/services/legal-consultation/>) aims to regulate all matters related to engagement, marriage, divorce, custody, and mutual rights between spouses, as well as all issues concerning personal status. The law outlines the relevant Sharia-based rulings, such as conditions, contracts, and divorce provisions. It also defines the rules and conditions for lineage, alimony, and custody to protect the rights of individuals and families, especially women and children.

Additionally, the new law provides a complete legal framework for resolving and settling family disputes.

This law was issued under Royal Decree No. (M/73) dated 8/6/1443 AH (corresponding to March 9, 2022). As mentioned, it aims to regulate personal status and family-related matters while promoting family and societal stability and ensuring justice.

The **Personal Status Law** is based on Islamic and humanitarian values, rooted in Islamic law, and takes into account ongoing social developments.

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Objectives of the Personal Status Law

The new law is one of the most important legal reforms in Saudi Arabia. Its objectives include achieving justice, organizing family affairs, clarifying rules related to marriage, divorce, and custody, and reinforcing the rights of women and children. It seeks to regulate family relationships transparently, based on legal and judicial principles.

The law also aims to modernize marriage and divorce procedures and ensure fair decisions in matters such as alimony and custody. It seeks to reduce family disputes to maintain peace and stability, as the family is the cornerstone of society.



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3. Contents of the Personal Status Law

The Saudi Personal Status Law consists of 252 articles divided into eight chapters



Defines engagement and the general rules of marriage, including essential conditions and pillars of the marriage contract. It also includes the rights and duties of both spouses.

Chapter 2: Effects of Marriage Contract

Details the consequences of the marriage contract, such as alimony, lineage, and the terms for proving lineage.

Chapter 3: Separation Between Spouses

Outlines the conditions under which separation occurs, including divorce, annulment, and the death of a spouse. It defines divorce and its types, and governs the annulment process.

Chapter 4: Effects of Separation

Explains the consequences of separation, such as waiting periods (iddah) and custody arrangements, detailing the conditions and rules for custody.

Chapter 5: Guardianship and Legal Custody

Covers the general provisions of guardianship, its conditions, and the order of legal guardianship.

Chapter 6: Wills

Specifies the legal provisions regarding wills, including their pillars, conditions, and cases of invalidation.

Chapter 7: Inheritance



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Outlines the general rules of inheritance and explains inheritance rights for relatives, missing persons, fetuses, and those with denied lineage.

Chapter 8: Final Provisions

Includes the concluding legal provisions of the law.

The law reflects a response to continuous societal developments, aiming to establish justice in family matters, and is fully based on Islamic Sharia.

4. Key Amendments Related to Marriage and Divorce

Saudi Arabia has introduced several amendments to its laws to ensure family stability. Notable among these are:

Setting the minimum marriage age at 18, prohibiting the documentation of marriages involving persons below this age (Article 9).

Requiring the official documentation of marriage contracts.

Mandating that verbal divorce is not legally valid unless documented in court, to preserve the rights of all parties.

These amendments aim to promote justice within families and enhance the protection of women's rights.

5. Women's Rights Under the New Law

The new law issued on 8/6/1443 AH strengthens women's rights across various family matters such as marriage, divorce, custody, and alimony, highlighting their central role in family and social life. While grounded in Sharia, it also keeps pace with modern societal changes.

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Marriage Rights:

A woman must give her consent for the marriage contract to be valid (Article 13), and her approval is required alongside the groom's.

Divorce Rights:

A woman has the right to request a divorce under specific conditions (Article 107), such as her husband failing to provide financial support. The court may grant the divorce upon her request.

Custody Rights:

The law prioritizes mothers for custody after separation, provided that it serves the child's best interests (Article 127).

Alimony Rights:

The law guarantees women's right to alimony, which includes food, clothing, housing, and other essential needs (Article 45).

These provisions aim to reinforce the woman's role in building a stable family by ensuring her rights and protection throughout all stages of family life.

Frequently Asked Questions

1. Is the husband obligated to pay alimony to the divorced wife in Saudi Arabia?

Yes. The husband must provide alimony to his ex-wife during the waiting period (iddah). If the wife is pregnant, alimony must continue until she gives birth.

2. What are a woman's rights in a Khula (judicial divorce) case?

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She may retain custody of her children if she meets custody requirements.

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entitled to alimony for the children in her care.

She has the right to suitable housing for herself and the children.

If she lives in rented accommodation, she may receive a monthly rent allowance to ensure proper housing continues.

3. How to choose the best Personal Status lawyer in Saudi Arabia? (Defense Law Firm as a model)

To choose the best lawyer, ensure they specialize in personal status cases and have solid experience in divorce, alimony, and custody. Choose a licensed attorney with a good reputation. Defense Lawyers (<https://lawfirm.com.sa/>) and Consultants is a reliable firm offering specialized legal consultations and has one of the top personal status lawyers in the Kingdom.

Conclusion:

The new Personal Status Law in Saudi Arabia marks an important step toward ensuring family justice and regulating intra-family relationships in a balanced manner according to Islamic Sharia. It reflects the Kingdom's commitment to protecting women's and children's rights and promoting family stability. Through this law, individuals can clearly understand their rights and obligations, contributing to social security.

If you need further clarification or legal support regarding the Personal Status Law, Defense Lawyers (<https://lawfirm.com.sa/>) and Consultants are here to provide effective legal solutions. We specialize in Saudi Personal Status Law and are committed to supporting you with the legal services you deserve.

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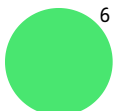
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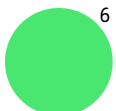
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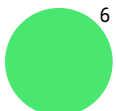
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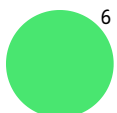
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